

THE PAYMENT OF WAGES ACT, 1936

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THE PAYMENT OF WAGES ACT, 1936

1ACT NO. IV OF 1936

[23rd April, 1936]

An Act to regulate the payment of wages to certain classes of persons employed in industry.

WHEREAS it is expedient to regulate the payment of wages to certain classes of persons

employed in industry; It is hereby enacted as follows:—

1. Short title, extent, commencement and application.—(1) This Act may be called the

Payment of Wages Act, 1936.

2[(2) It extends to the whole of Pakistan.]

(3) It shall come into force on such date³ as the 4[Federal Government] may, by notification

in the 5[official Gazette], appoint.

(4) It applies to the payment of wages to persons employed in any factory
6[industrial
establishment or commercial establishment] and to persons employed
(otherwise than in a factory)
upon any railway by a railway administration or, either directly or
through a sub-contractor, by a
person fulfilling a contract with a railway administration.

6* * * * *

1For Statement of Objects and Reasons, see Gazette of India, 1935, Pt.V,
p.20; and for Report of Select Committee, see *ibid.*, pp.77-79.

This Act has been extended to-

(i) the Leased Areas of Baluchistan, see the Leased Areas (Laws) Order,
1950 (G.G.O.3 of 1950); and applied in the Federated

Areas of Baluchistan, see Gazette of India, 1937, Pt.I, p.1499,

(ii) the Khairpur State, see the Khairpur (Federal Laws) (Extension)
Order, 1953 (G.G.O.5 of 1953) as amended,

(iii) the Baluchistan State Union, see the Baluchistan State Union
(Federal Laws) (Extension) Order, 1953 (G.G.O.4 of 1953), as
amended, and

(iv) the State of Bahawalpur by the Bahawalpur (Extension of Federal Laws)
Order, 1953 (G.G.O.11 of 1953), as amended.

The Act has been and shall be deemed to have been brought into force in
Gwadur with effect from 8th September, 1958, by the Gwadur (Application of
Central Laws) Ordinance, 1960 (37 of 1960), s.2.

The Act has been applied to the Provincially Administered Tribal Areas or
to the parts or those areas to which it does not already apply, see,
Regulation

No. I of 1972, s.2 and Sch.

2Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960),
s.3 and 2nd Sch. (with effect from the 14th October, 1955), for the
original

sub-section (2) as amended by A.O., 1949, and the Federal Laws (Revision
and Declaration) Act, 1951 (26 of 1951), s.8.

3The 28th March, 1937, see Gazette of India, 1937, Pt.I, p.626.

4Subs. by the Labour Laws (Amdt.) Act, 1975, (11 of 1975), s.2 and Sch.,
for "Central Government", which was subs. by A.O., 1937, for "G.G. in C".

5Subs. by A.O., 1937, for "Gazette of India".

6Omitted and Ins. by Ord. 2001 (LIII of 2001), s.2 & Sch. (with effect
from 1st July, 2001).

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2. Definitions. In this Act, unless there is anything repugnant in the
subject or context,-

1[(i) "commercial establishment" means a commercial establishment as
defined in

the West Pakistan Industrial and Commercial (Standing Orders) Ordinance,
1968 (W. P. Ordinance VI of 1968).].

1[(ia)] "factory" means a factory as defined in clause (j) of section 2 of the Factories

Act, 1934 ;

(ii) "industrial establishment" means any—

(a) tramway or motor omnibus service;

(b) dock, wharf or jetty;

(c) inland steam-vessel;

(d) mine, quarry or oil-field;

(e) plantation;

(f) workshop or other establishment in which articles are produced, adapted or manufactured, with a view to their use, transport or sale;

2[(g) establishment of a contractor who, directly or indirectly, employs persons 3* * * to do any skilled or unskilled, manual or clerical labour for hire or reward in connection with the execution of a contract to which he is a party, and includes the premises in which, or the site at which, any process connected with such execution is carried on;

Explanation.— "Contractor" includes a sub-contractor, headman or agent ;]

(iii) "plantation" means any estate which is maintained for the purpose of growing

cinchona, rubber, coffee or tea, and on which twenty-five or more persons are

employed for that purpose ;

(iv) "prescribed" means prescribed by rules made under this Act ;

(v) "railway administration" has the meaning assigned to it in clause (6) of section

3 of the Railways Act, 1890 (IX of 1890) ; and

1Ins. and renumbered by Ord.53 of 2001, s.2 and Sch. (with effect from 1st July, 2001).

2Ins. by the payment of wages (Amdt.) Act, 1973 (17 of 1973),s.3.

3The words "in any industrial establishment" omitted by the Labour Laws (Amdt.) Act, 1977 (17 of 1977),s.2 and First Sch.

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(vi) "wages" means all remuneration, capable of being expressed in terms of

money, which would if the terms of the contract of employment, express or implied, were fulfilled, be payable, whether conditionally upon the regular

attendance, good work or conduct or other behavior of the person employed, or otherwise, to a person employed in respect of his employment or of work done in such employment, and includes any bonus or other additional remuneration of the nature aforesaid which would be so payable and any sum payable to such person by reason of the termination of his employment, but does not include—

(a) the value of any house-accommodation, supply of light, water, medical attendance or other amenity, or of any service excluded by general or special order of the 1 * * * 2[Provincial Government];

(b) any contribution paid by the employer to any pension fund or

provident fund;

(c) any travelling allowance or the value of any travelling concession;

(d) any sum paid to the person employed to defray special expenses entailed on him by the nature of his employment; or

(e) any gratuity payable on discharge.

3. Responsibility for payment of wages. Every employer 3[, including a contractor,] shall be

responsible for the payment to persons employed by him of all wages required to be paid under this

Act:

Provided that, in the case of persons employed (otherwise than by a contractor)–

(a) in factories, if a person has been named as the manager of the factory under

clause (e) of sub-section (1) of section 9 of the Factories Act, 1934 (XXV of

1934),

(b) in industrial establishments, if there is a person responsible to the employer for

the supervision and control of the industrial establishment,

(c) upon railways (otherwise than in factories), if the employer is the railway

administration and the railway administration has nominated a person in this

behalf for the local area concerned,

the person so named, the person so responsible to the employer, or the person so nominated, as the

case may be, shall be responsible for such payment.

1The words "G. G. in C. or" omitted by A. O., 1937.

2Subs., ibid., for "L. G"

3Ins. by the Labour Laws (Amdt.) Ordinance, 1972 (9 of 1972), s.2 and Sch.

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4. Fixation of wage-periods.–(1) Every person responsible for the payment of wages under

section 3 shall fix periods (in this Act referred to as wage periods) in respect of which such wages

shall be payable.

(2) No wage-period shall exceed one month.

5. Time of payment of wages.–(1) The wages of every person employed upon or in–

(a) any railway, factory or industrial establishment upon or in which less than one

thousand persons are employed, shall be paid before the expiry of the seventh

day,

(b) any other railway, factory or industrial establishment, shall be paid before the

expiry of the tenth day, after the last day of the wage-period in respect of which the wages are payable.

(2) Where the employment of any person is terminated by or on behalf of the employer, the wages earned by him shall be paid before the expiry of the second working day from the day on which his employment is terminated.

(3) The 1[Provincial Government] may, by general or special order, exempt, to such extent and subject to such conditions as may be specified in the order, the person responsible for the payment of wages to persons employed upon any railway (otherwise than in a factory) from the operation of this section in respect of the wages of any such persons or class of such persons.

(4) All payments of wages shall be made on a working-day.

6. Wages to be paid in current coin or currency notes. All wages shall be paid in current coin or currency notes or in both.

7. Deductions which may be made from wages.__(1) Notwithstanding the provisions of sub-section (2) of section 47 of the Railways Act, 1890 (IX of 1890), the wages of an employed person shall be paid to him without deductions of any kind except those authorised by or under this Act.

Explanation.— Every payment made by the employed person to the employer or his agent shall, for the purposes of this Act, be deemed to be a deduction from wages.

(2) Deductions from the wages of an employed person shall be made only in accordance with the provisions of this Act, and may be of the following kinds only, namely :—

1Subs. by A.O., 1937, for "G. G in C.".

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- (a) fines ;
- (b) deductions for absence from duty ;
- (c) deductions for damage to or loss of goods expressly entrusted to the employed person for custody, or for loss of money for which he is required to account, where such damage or loss is directly attributable to his neglect or default ;
- (d) deductions for house-accommodation supplied by the employer ;

(e) deductions for such amenities and services supplied by the employer as the 1*

* * 2[Provincial Government] may, by general or special order³, authorise;

Explanation.____ The word "services" in this sub-clause does not include the supply of tools

and raw materials required for the purposes of employment.

(f) deductions for recovery of advances or for adjustment of over-payments of

wages;

(g) deductions of income-tax payable by the employed person;

(h) deductions required to be made by order of a Court or other authority competent to make such order;

(i) deductions for subscriptions to, and for repayment of advances from, any

provident fund to which the Provident Funds Act, 1925 (XIX of 1925), applies

or any recognised provident fund as defined in section 4[clause (37) of section

2 of the Income Tax Ordinance, 1979 (XXXI of 1979)], or any provident fund approved in this behalf by the 2[Provincial Government], during the continuance of such approval; 5*

(j) deductions for payments to co-operative societies approved by the 2[Provincial

Government] or to a scheme of insurance maintained by the 6[Pakistan Post Office] 7[and

(k) deductions, made with the written authorisation of the employed person, in

furtherance of any War Savings Scheme, approved by the Provincial Government, for the purchase of securities of the 8[Government of Pakistan],

or the Government of the United Kingdom.]

1The words "G.G in C. or" omitted *ibid*.

2Subs. *ibid*., for "L.G".

3For such Order, see Gaz. of P., 1952, Pt. I, Section 1, p.158.

4Subs by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Sch, II, for "58 A of the Income Tax Act, 1922".

5The word "and" omitted by the Payment of Wages (Amdt.) Ordinance, 1940 (3 of 1940), s. 2

6Subs. by the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 4 and 3rd Sch., for "Indian Post Office".

7The word "and" and clause (k) ins. by Ordinance 3 of 1940, s. 2.

8Subs. by A.O., 1949, for "Government of India".

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8. Fines.____ (1) No fine shall be imposed on any employed person save in respect of such acts

and omissions on his part as the employer, with the previous approval of the 1[Provincial

Government] or of the prescribed authority, may have specified by notice under sub-section (2).

(2) A notice specifying such acts and omissions shall be exhibited in the prescribed manner

on the premises in which the employment is carried on or in the case of persons employed upon a railway (otherwise than in a factory), at the prescribed place or places.

(3) No fine shall be imposed on any employed person until he has been given an opportunity

of showing cause against the fine, or otherwise than in accordance with such procedure as may be prescribed for the imposition of fines.

(4) The total amount of fine which may be imposed in any one wage period on any employed

person shall not exceed an amount equal to half an anna in the rupee of the wages payable to him in respect of that wage-period.

(5) No fine shall be imposed on any employed person who is under the age of fifteen years.

(6) No fine imposed on any employed person shall be recovered from him by installments or

after the expiry of sixty days from the day on which it was imposed.

(7) Every fine shall be deemed to have been imposed on the day of the act or omission in

respect of which it was imposed.

(8) All fines and all realisations thereof shall be recorded in a register to be kept by the

person responsible for the payment of wages under section 3 in such form as may be prescribed; and

all such realisations shall be applied only to such purposes beneficial to the persons employed in the

factory or establishment as are approved by the prescribed authority.

Explanation.____ When the persons employed upon or in any railway, factory or industrial

establishment are part only of a staff employed under the same management, all such realisations

may be credited to a common fund maintained for the staff as a whole, provided that the fund shall

be applied only to such purposes as are approved by the prescribed authority.

9. Deductions for absence from duty.____ (1) Deductions may be made under clause (b) of

subsection (2) of section 7 only on account of the absence of an employed person from the place or

places, where by the terms of his employment, he is required to work, such absence being for the

whole or any part of the period during which he is so required to work.

(2) The amount of such deduction shall in no case bear to the wages payable to the employed person in respect of the wage-period for which the deduction is made a larger proportion than the period for which he was absent bears to the total period, within such wage-period, during which by the terms of his employment, he was required to work:
1Subs. by A.O., 1937, for "L.G".

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Provided that, subject to any rules made in this behalf by the 1[Provincial Government], if ten or more employed persons acting in concert absent themselves without due notice (that is to say without giving the notice which is required under the terms of their contracts of employment) and without reasonable cause, such deduction from any such person may include such amount not exceeding his wages for eight days as may by any such terms be due to the employer in lieu of due notice.

2[Explanation.—For the purposes of this section, an employed person shall be deemed to be absent from the place where he is required to work if, although present in such place, he refuses, in pursuance of a stay-in-strike or for any other cause which is not reasonable in the circumstances, to carry out his work.]

10. Deductions for damage or loss.—(1) A deduction under clause (c) of sub-section (2) of section 7 shall not exceed the amount of the damage or loss caused to the employer by the neglect or default of the employed person and shall not be made until the employed person has been given an opportunity of showing cause against the deduction, or otherwise than in accordance with such procedure as may be prescribed for the making of such deductions.

(2) All such deductions and all realizations thereof shall be recorded in a register to be kept by the person responsible for the payment of wages under section 3 in such form as may be prescribed.

11. Deductions for services rendered. A deduction under clause (d) or clause (e) of sub-section (2) of section 7 shall not be made from the wages of an employed person unless the house-accommodation, amenity or service has been accepted by him, as a term of employment or

otherwise, and such deduction shall not exceed an amount equivalent to the value of the house-accommodation, amenity or service supplied and, in the case of a deduction under the said clause (e), shall be subject to such conditions as 3* * * the 1[Provincial Government] may impose.

12. Deductions for recovery of advances. Deductions under clause (f) of sub-section (2) of section 7 shall be subject to the following conditions, namely:-

(a) recovery of an advance of money given before employment began shall be made from the first payment of wages in respect of a complete wage-period, but no recovery shall be made of such advances given for traveling-expenses;

(b) recovery of advances of wages not already earned shall be subject to any rules

made by the 1[Provincial Government] regulating the extent to which such advances may be given and the installments by which they may be recovered. 1Subs. by A. O., 1937, for "L.G.".

2Explanation ins. by the Payment of Wages (Amdt.) Act, 1937 (22 of 1937), s. 2.

3The words "the G. G. in C. or" omitted by A. O., 1937.

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13. Deductions for payments to co-operative societies and insurance schemes. Deductions under clause (j) 1[and clause (k)] of sub-section (2) of section 7 shall be subject to such conditions as the 2[Provincial Government] may impose.

14. Inspectors. (1) An Inspector of Factories appointed under sub-section (1) of section 10 of the Factories Act, 1934 (XXV of 1934), shall be an Inspector for the purposes of this Act in respect of all factories within the local limits assigned to him.

(2) The 3[Provincial Government] may appoint inspectors for the purposes of this Act in respect of all persons employed upon a railway (otherwise than in a factory) to whom this Act applies.

(3) The 4[Provincial Government] may, by notification in the 5[official Gazette], appoint such other persons as it thinks fit to be Inspectors for the purposes of this Act, and may define the local limits within which and the class of factories and industrial establishments in respect of which they shall exercise their functions.

(4) An Inspector may, at all reasonable hours, enter on any premises, and make such

examination of any register or document relating to the calculation or payment of wages and take on the spot or otherwise such evidence of any person, and exercise such other powers of inspection, as he may deem necessary for carrying out the purposes of this Act.

(5) Every Inspector shall be deemed to be a public servant within the meaning of the

Pakistan Penal Code (XLV of 1860).

15. Claims arising out of deductions from wages or delay in payment of wages and

penalty for malicious or vexatious claims.____ (1) The 2[Provincial Government] may, by

notifications⁶ in the 7[official Gazette], appoint any Commissioner for Workmen's Compensation or

other officer with experience as a Judge of a Civil Court or as a stipendiary Magistrate to be the

authority to hear and decide for any specified area all claims arising out of deductions from the

wages, or delay in payment of the wages, 8[or non-payment of dues relating to provident fund or

gratuity payable under any law,] of persons employed or paid in that area.

1Ins. by the Payment of Wages (Amdt.) Ordinance, 1940 (3 of 1940), section 3.

2Subs. by A. O., 1937, for "L. G.".

3Subs. by A. O., 1937, for "G. G. in C.".

4Subs. *ibid.*, for "L. G.".

5Subs. by A. O., 1937, for "local official Gazette".

6For such Notifin:____

(i) see Notifin. No. 1237-P./ 36-III, P. & M.D. (Misc.), dated the 5th April, 1939, published in Sindh Gazette, 1939, Pt. I, p. 630.,

(ii) see Notifin. No. S. R. O. 673 (K)/61, dated the 8th July, 1961, published in the Gaz. of P., 1961, Pt. I, p. 268,

7Subs. by A. O., 1937, for "local official Gazette".

8Ins. by the Payment of Wages (Amdt.) Act, 1973, (17 of 1973), s. 4.

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(2) Where contrary to the provisions of this Act any deduction has been made from the wages

of an employed person, or any payment of wages 1[or of any dues relating to provident fund or

gratuity payable under any law,] has been delayed, such person himself, or any legal practitioner or

any official of a registered trade union authorised in writing to act on his behalf, or any Inspector

under this Act, 1[or any of the heirs of an employed person who has been died,] or any other person

acting with the permission of the authority appointed under sub-section

(1), may apply to such

authority for a direction under sub-section (3):

Provided that every such application shall be presented within 2[three years] from the date on which the deduction from the wages was made or from the date on which the payment of the wages

was due to be made, as the case may be:

Provided further that any application may be admitted after the said period of 2[three years]

when the applicant satisfies the authority that he had sufficient cause for not making the application within such period.

(3) When any application under sub-section (2) is entertained, the authority shall hear the applicant and the employer or other person responsible for the payment of wages under section 3, or give them an opportunity of being heard, and, after such further inquiry (if any) as may be necessary, may, without prejudice to any other penalty to which such employer or other person is liable under this Act, direct the refund to the employed person 3[or , if the applicant is one of the heirs of an employed person, the payment to such applicant,] of the amount deducted, or the payment of the delayed wages, together with the payment of such compensation as the authority may think fit, not exceeding ten times the amount deducted in the former case and not exceeding ten rupees in the latter:

Provided that no direction for the payment of compensation shall be made in the case of

delayed wages if the authority is satisfied that the delay was due to—

(a) a bonafide error or bonafide dispute as to the amount payable to the employed person, or

(b) the occurrence of an emergency, or the existence of exceptional circumstances, such that the person responsible for the payment of the wages

was unable, though exercising reasonable diligence, to make prompt payment,

or

(c) the failure of the employed person to apply for or accept payment.

(4) If the authority hearing any application under this section is satisfied that it was either

malicious or vexatious, the authority may direct that a penalty not exceeding fifty rupees be paid to

the employer or other person responsible for the payment of wages by the person presenting the

application.

(5) any amount directed to be paid under this section may be recovered__

(a) if the authority is a Magistrate, by the authority as if it were a fine imposed by

him as Magistrate, and

1Ins. by the Labour Laws (Amdt.) Act, 1977 (17 of 1977), s. 2 and First Sch.

2Subs. by the Payment of Wages (Amdt.) Act, 1973 (17 of 1973), s. 4 or "six months".

3Ins. by the Labour Laws (Amdt.) Act, 1977 (17 of 1977) s. 2 and First Sch.

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1[(b) if the authority is not a Magistrate, by the authority as an arrear of land-

revenue, or, in the prescribed manner, by the authority by distress and sale of

the movable property belonging to the person by whom the amount is to be paid, or by attachment and sale of the immovable property belonging to such

person.] to whom the authority makes application in this behalf, as if it were a

fine imposed by such Magistrate.

16. Single application in respect of claims from unpaid group.- (1)

Employed persons

are said to belong to the same unpaid group if they are borne on the same establishment and if their

wages for the same wage-period or periods have remained unpaid after the day fixed by section 5.

(2) A single application may be presented under section 15 on behalf or in respect of any

number of employed persons belonging to the same unpaid group, and in such case the maximum

compensation that may be awarded under sub-section (3) of section 15 shall be ten rupees per head.

(3) The authority may deal with any number of separate pending applications, presented

under section 15 in respect of persons belonging to the same unpaid group, as a single application

presented under sub-section (2) of this section, and the provisions of that sub-section shall apply accordingly.

17. Appeal.- (1) An appeal against a direction made under 2[sub-section (3) or sub-section

(4)] of section 15 may be preferred, within thirty days of the date on which the direction was made,

3* * * before the 4[Labour Court constituted under the Industrial Relations Ordinance, 1969 (XXIII

of 1969), within whose jurisdiction the cause of action to which the appeal relates arose]-

(a) by the employer or other person responsible for the payment of wages under

section 3, if the total sum directed to be paid by way of wages and compensa-

tion exceeds three hundred rupees [:]5

6[Provided that no appeal under this clause shall lie unless the memorandum of appeal is

accompanied by a certificate of the authority to the effect that the appellant has deposited with the

authority the amount payable under the direction appealed against, or].

7[(b) by an employed person or, if he has died, by any of his heirs, if the total

amount of wages claimed to have been withheld from the employed person or from the unpaid group to which he belonged exceeds fifty rupees, or]

(c) by any person directed to pay a penalty under 8[sub-section (4)] of section 15.

1Subs. by the Labour Laws. (Amdt.) Act, 1976 (II of 1976), s. 2 and Sch., for clause (b).

2Subs. by the Repealing and Amending Act, 1937 (20 of 1937), s. 2 and 1st Sch., for "sub-section (3)".

3The words "in a Presidency-town [or in Rangoon] before the Court of Small Causes and elsewhere" omitted by A. O., 1949. The words within crotchets were omitted by A. O., 1937.

4Subs. by the Labour Laws (Amdt.) Act, 1975 (11 of 1975), s. 2 and Sch., for "District Court".

5Subs. by the Labour Laws (Amdt.) Act, 1976 (11 of 1976), s. 2 and Sch., for "or",.

6Added *ibid*.

7Subs. by the Labour Laws (Amdt.) Act, 1977 (17 of 1977), s. 2 and First Sch., for clause (b).

8Subs. by the Repealing and Amending Act, 1937 (20 of 1937), s. 2 and 1st Sch., for "sub-section (5)".

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1[(1A) All appeals pending before any District Court under this section immediately before

the commencement of the Labour Laws (Amendment) Act, 1975 , shall , on such commencement

stand transferred to, and be disposed of by , the Labour Court within whose jurisdiction the cause of

action to which the appeal relates arose.].

(2) Save as provided in sub-section (1), any direction made under sub-section (3) or

2[sub-section (4)] of section 15 shall be final.

18. Powers of authorities appointed under section 15. Every authority appointed under

sub-section (1) of section 15 shall have all the powers of a Civil Court under the Code of Civil Procedure, 1908 (V of 1908), for the purpose of taking evidence and of enforcing the attendance of witnesses and compelling the production of documents, and every such authority shall be deemed to be a Civil Court for all the purposes of section 195 and of Chapter XXXV of the Code of Criminal Procedure, 1898 (V of 1898).

19. Power to recover from employer in certain cases. When the authority referred to in section 15 or the Court referred to in section 17 is unable to recover from any person (other than an employer) responsible under section 3 for the payment of wages any amount directed by such authority under section 15 or section 17 to be paid by such person, the authority shall recover the amount from the employer of the employed person concerned.

20. Penalty for offences under the Act.____ (1) Whoever being responsible for the payment of wages to an employed person contravenes any of the provisions of any of the following sections, namely, section 5 and sections 7 to 13, both inclusive, shall be punishable with fine which may extend to five hundred rupees.

(2) Whoever contravenes the provisions of section 4, section 6 or section 25 shall be punishable with fine which may extend to two hundred rupees.

21. Procedure in trial of offences.____(1) No Court shall take cognizance of a complaint against any person for an offence under sub-section (1) of section 20, unless an application in respect of the facts constituting the offence has been presented under section 15 and has been granted wholly or in part and the authority empowered under the latter section or the appellate Court granting such application has sanctioned the making of the complaint.

(2) Before sanctioning the making of a complaint against any person for an offence under sub-section (1) of section 20, the authority empowered under section 15 or the appellate Court, as the case may be, shall give such person an opportunity of showing cause against the granting of such sanction, and the sanction shall not be granted if such person satisfies the authority or Court that his default was due to____

(a) a bona fide error or bona fide dispute as to the amount payable to the

employed person, or

(b) the occurrence of an emergency, or the existence of exceptional circumstances, such that the person responsible for the payment of the wages

was unable, though exercising reasonable diligence, to make prompt payment,

or

1Ins. by the Labour Laws (Amdt.) Act. 1975, 11 of 1975, s. 2 and Sch.

2Subs. by the Repealing and Amending Act, 1937 (20 of 1937), s. 2 and 1st Sch., for "sub-section (5)"

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(c) the failure of the employed person to apply for or accept payment.

(3) No Court shall take cognizance of a contravention of section 4 or of section 6 or of a

contravention of any rule made under section 26 except on a complaint made by or with the sanction

of an Inspector under this Act.

(4) In imposing any fine for an offence under sub-section (1) of section 20 the Court shall

take into consideration the amount of any compensation already awarded against the accused in any proceedings taken under section 15.

1[* * * * *]

22. Bar of suits. No Court shall entertain any suit for the recovery of wages or of any

deduction from wages in so far as the sum so claimed—

(a) forms the subject of an application under section 15 which has been presented

by the plaintiff and which is pending before the authority appointed under that

section or of an appeal under section 17 ; or

(b) has formed the subject of a direction under section 15 in favour of the plaintiff

; or

(c) has been adjudged, in any proceeding under section 15, not to be owed to the

plaintiff ; or

(d) could have been recovered by an application under section 15.

23. Contracting out. Any contract or agreement, whether made before or after the

commencement of this Act, whereby an employed person relinquishes any right conferred by this

Act shall be null and void in so far as it purports to deprive him of such right.

224. [Application of Act to Railways, etc.] Omitted by A. O., 1964, Art. 2 and Sch.

25. Display by notice of abstracts of the Act. The person responsible for the payment of wages to persons employed in a factory shall cause to be displayed in such factory a notice containing such abstracts of this Act and of the rules made thereunder in English and in the language of the majority of the persons employed in the factory, as may be prescribed.

26. Rule-making power.—(1) The 3[Provincial Government] may make rules⁴ to regulate the procedure to be followed by the authorities and Courts referred to in sections 15 and 17.

(2) The 5[Provincial Government] may, 6* * *, by notification in the 7[official Gazette], make rules⁸ for the purpose of carrying into effect the provisions of this Act. 1Section 21A omitted by the Payment of Wages (Amdt.) Act, 1973 (17 of 1973), s. 5, which was amended by Ord., 9 of 1972, s. 2 and First Sch. 2This section was amended by A.O., 1937 and A.O., 1961.

3Subs. by A. O., 1937., for "G.G. in C.".

4For the Payment of Wages (Procedure) Rules, 1937, made by the Governor General in Council under this provisions, see Gazette of India, 1937, Pt., I, pp. 303-312.

5 Subs. by A. O., 1937 for "L.G.".

6The words "Subject to the control of the G.G. in C.", omitted ibid.

7Subs. ibid., for "local official Gazette".

8For the payment of wages (Railways) Rules, 1937, made by the G.G in C. under this provision read with s.24, see Gazette of India, 1937, Pt.I, pp.503-512.

For the payment of wages (Karachi Port) Rules, 1958, see Gaz. of P., 1958, Pt.I, pp.216-223.

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(3) In particular and without prejudice to the generality of the foregoing power, rules made under sub-section (2) may—

(a) require the maintenance of such records, registers, returns and notices as are necessary for the enforcement of the Act and prescribe the form thereof;

(b) require the display in a conspicuous place on premises where employment is carried on of notices specifying rates of wages payable to persons employed on such premises;

(c) provide for the regular inspection of the weights, measures and weighing machines used by employers in checking or ascertaining the wages of persons employed by them;

(d) prescribe the manner of giving notice of the days on which wages will be paid;

(e) prescribe the authority competent to approve under sub-section (1) of section 8 acts and omissions in respect of which fines may be imposed;

(f) prescribe the procedure for the imposition of fines under section 8 and for the making of the deductions referred to in section 10;

(g) prescribe the conditions subject to which deductions may be made under the proviso to sub-section (2) of section 9;

(h) prescribe the authority competent to approve the purposes on which the proceeds of fines shall be expended;

(i) prescribe the extent to which advances may be made and the installments by which they may be recovered with reference to clause (b) of section 12;

(j) regulate the scales of costs which may be allowed in proceedings under this Act;

(k) prescribe the amount of court-fees payable in respect of any proceedings under this Act; and

(l) prescribe the abstracts to be contained in the notices required by section 25.

(4) In making any rule under this section the 1[Provincial Government] may provide that a contravention of the rule shall be punishable with fine which may extend to two hundred rupees.

(5) All rules made under this section shall be subject to the condition of previous publication, and the date to be specified under clause (3) of section 23 of the General Clauses Act, 1897, shall not be less than three months from the date on which the draft of the proposed rules was published.

1 Subs. by A.O., 1937, for "L.G.".